

		Should Plaintiffs desire to file an amended complaint that addresses the issues in this ruling, Plaintiffs must file and serve it within 30 days of service of notice of ruling. Defendant to give notice.
5	Akue vs. Brandlin	TENTATIVE RULING: <u>Motion to Compel</u> Defendants A.C. Towing, Inc., Joan E. Cumbo, Paul Cumbo, and Trevis L. Cumbo move to compel Plaintiff Adoukoe Akue Plaintiff to provide responses without objections to the form interrogatories (set one) and the request for production of documents (set one). For the following reasons, the motion is DENIED. After Defendants filed this motion, Plaintiff served responses to the interrogatories and requests for production of documents at issue in this motion. (Opp, Ex. B.) Defendants concede that the responses “mooted all issues in the motion, except for sanctions.” (Reply at 2:7.) Sanctions are available on a motion to compel a response to interrogatories and inspection demands. (Code Civ. Proc. §§ 2030.290, 2031.300 (“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”).) Defendants seek sanctions in the amount of \$1,300 for each of the two motions. However, Plaintiff provides evidence that she was never served with the discovery requests at all. (ROA 140.) Plaintiff also provides evidence that the discovery requests served by Defendants reflected a different case number, Case No. 30-2022-01258177, which was another case against the same defendants but was dismissed on February 14, 2024. Defendants did not respond to these contentions in their reply. The Court denies Defendants’ request for sanctions because the imposition of sanctions would be unjust under these circumstances. Moving Defendants to give notice.

6	Palacios vs. Satin Topless Gentlemen's Club	TENTATIVE RULING: <u>Motion to Compel</u> Defendant South Bay Entertainment, LLC dba Satin Topless Gentlemen’s Club moves to compel Plaintiff Minerva Palacios to serve responses without objections to Plaintiff’s first set of form interrogatories and special interrogatories. For the following reasons, the motions are GRANTED. Responses to interrogatories and requests for production of documents are due 30 days after service (plus appropriate time for method of service). (Code Civ. Proc. §§ 2030.260; 2031.260.) On January 17, 2024, Defendant served the first set of form interrogatories and special interrogatories on Plaintiff. (Ji Dec., ¶ 2, Exs. A and B.) Plaintiff failed to respond, despite Defendant’s efforts to meet and confer. (Id. at ¶¶ 3-6, Exs. C and D.) Given Plaintiff’s failure to provide timely responses, Defendant is entitled to an order compelling responses without objection. (Code Civ. Proc. §§ 2030.290, 2031.300.) Because Plaintiff did not timely respond, objections to the discovery requests are waived. (Code Civ. Proc. §§ 2030.290(a), 2031.300(a).) Plaintiff is ordered to provide verified responses without objections to the first set of form interrogatories and special interrogatories within 30 days of service of notice of this ruling. Sanctions are available on motions to compel responses to interrogatories. (Code Civ. Proc. § 2031.300(c) (“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”).) Plaintiff is ordered to pay sanctions to Defendant in the amount of \$735 (3 hours at \$225 per hour + \$60 filing fee) for each of the two motions, for a total of \$1,470, payable within 30 days of service of notice of this ruling. Defendant to give notice.
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7	Ally Bank vs. Qwest Engineering Inc.	OFF CALENDAR
8	Cemex Construction Materials Pacific, LLC vs. Gunner Concrete, Inc.	TENTATIVE RULING: The hearing on the motion of Douglas L. Mahaffey & Mahaffey Law Group to be relieved as counsel of record for Defendant Gunner Concrete, Inc. is CONTINUED to April 16, 2026, at 9:00 a.m. in Department N16. The proof of service attached to the motion shows service on Plaintiff but not on Defendant Gunner Concrete, Inc. Defendant's counsel's declaration states that the client was served by mail, but it does not state when such service was accomplished. Counsel shall file a proof of service showing service on Defendant Gunner Concrete, Inc. by April 10, 2025. Moving counsel to give notice and file a proof of service of such notice.
9	Molina vs. Miller	TENTATIVE RULING: For the reasons set forth below, Defendant Carol Jean Miller, Executrix of the Estate of Gertrude Frances Mysliwy's unopposed motion for attorneys' fees is GRANTED. Defendant Carol Jean Miller, Executrix of the Estate of Gertrude Frances Mysliwy's is awarded a total of \$22,886.67 in attorneys' fees. Costs to be awarded separately. <u>Applicable Law</u> Prob. Code § 9354 provides: (a) In addition to any other county in which an action may be commenced, an action on the claim may be commenced in the county in which the proceeding for administration of the decedent's estate is pending. (b) The plaintiff shall file a notice of the pendency of the action with the court clerk in the estate proceeding, together with proof of giving a copy of the notice to the personal representative as provided in Section 1215. Personal service of a copy of the summons and complaint on the personal representative is equivalent to the filing and giving of the notice. Any property distributed under court order, or any payment properly made, before the notice is filed and given is

not subject to the claim. The personal representative, distributee, or payee is not liable on account of the prior distribution or payment. (c) The prevailing party in the action shall be awarded court costs and, if the court determines that the prosecution or defense of the action against the prevailing party was unreasonable, the prevailing party shall be awarded reasonable litigation expenses, including attorney's fees.

It is undisputed that Defendant is the prevailing party in this action, as this Court sustained Defendant's demurrer to Plaintiff's first amended complaint in its entirety without leave to amend, and issued an order of dismissal on 9/16/24. (ROA 84).

Pursuant to subdivision (c), Defendant may be awarded attorneys' fees for defending this action if the court determines that Plaintiff's prosecution of this action was "unreasonable."

In *Uzyel v. Kadisha* (2010) 188 Cal.App.4th 866, the court determined whether attorneys' fees should be awarded under Prob. Code § 17211, which allowed for attorneys' fees to be awarded to the trustee if the beneficiary's contesting of the trustee account was "unreasonable". The court concluded that an award of fees under this statute is appropriate only if "no reasonable attorney would have believed that the opposition had any merit." (*Id.* at 927).

This Court previously determined that the one-year statute of limitations began after the decedent's death on September 19, 2020. (ROA 29 [Order], FAC ¶ 9) Plaintiff did not file her claim or complaint by the September 19, 2021, deadline. In Plaintiff's opposition, she attempted arguments that failed under the applicable statutes. First, Plaintiff argued that if a creditor did not receive proper notice of administration or if there was an omission or defect in the notice, the creditor may file a petition under Code Civ. Proc. § 9103 to file a late claim. However, this court found that Section 9000 *et seq.* repeatedly makes clear that these sections do not extend the time set forth in Section 366.2. (See Prob. Code § 9013, subd. (f) ["Nothing in this section authorizes allowance or approval of a claim barred by, or extends the time provided in, Section 366.2 of the Code of Civil Procedure."])).

Second, Plaintiff argued that her claim was filed in compliance with the probate code because it was filed within "four months after letters or within 60 days of the notice", but this court once again found that the outer-limit deadline of one year from the decedent's death was still in effect. Plaintiff also argued that the doctrine of equitable estoppel tolled her claim because both Robert Misliwy and Defendant

Miller caused plaintiff to delay the filing of her claim believing that if and when Plaintiff was appointed as personal representative, she would approve her own valid claim, but she was ultimately never appointed, and had to make a late, formal claim. However, Plaintiff presented no facts establishing that Miller or Misliwy undertook any action to make Plaintiff believe that she would be appointed, or any other action causing her to delay her claim. To the contrary, when Robert Misliwy filed a petition to be appointed two months later in December, Plaintiff filed an objection, and “believed in good faith that the litigation would result in her proving that Robert was disqualified.” (FAC, ¶ 21).

Plaintiff has not opposed this motion, and, accordingly, failed to provide any argument or evidence justifying her opposition to the demurrer.

Amount of Fees

The lodestar method for calculating attorneys’ fees applies to any statutory attorneys’ fees award, unless the statute authorizing the award provides for another method of calculation. (*Galbiso v. Orosi Pub. Util. Dist.* (2008) 167 Cal.App.4th 1063, 1089; see also *K.I. v. Wagner* (2014) 225 Cal.App.4th 1412, 1425.)

When determining a reasonable attorneys’ fees award using the lodestar method, the court begins by deciding the reasonable hours the prevailing party’s attorney spent on the case and multiplies that number by the reasonable hourly compensation of each attorney. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998).

The reasonable hourly rate is based on the reasonable market value of the attorney’s services. (*See PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1094-1095.) This standard applies regardless of how much the attorney actually charged the client. (*See ibid.*) Thus, the same reasonable hourly rate will apply whether the attorney charged nothing for their services, charged below-market or discounted rates, represented the client on a contingent fee basis, or are in-house counsel paid a fixed salary. To determine the reasonable market value of the legal services provided, the court must look to the range of reasonable rates charged by and judicially awarded to comparable attorneys for comparable work. (*See Children’s Hospital & Medical Center v. Bonta* (2002) 97 Cal. App. 4th 740, 783; see also *PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1095 [“[The] reasonable hourly rate is that prevailing in the community for similar work.”].)

		Defendant counsel's seeks fees at an hourly rate of \$800 per hour. (Decl. of Shekerlian, ¶ 3). Counsel has not provided any information to justify this high hourly rate. Accordingly, the court will award attorneys' fees at half the hourly rate (\$400.00), for a total award of \$22,886.67 in attorneys' fees. The court finds this better reflects the reasonable hourly rate prevailing in the community for similar work. Defendant shall give notice.
10	Rhodes vs. Emano	TENTATIVE RULING: For the reasons set forth below, the motion by Shaun J. Bauman, counsel for Plaintiff, to be relieved as counsel is DENIED without prejudice. On February 19, 2024, the court initially continued the hearing on the motion due to service issues. While the proof of service on the initial motion showed service on opposing counsel, the record was unclear as to when, if ever, the moving papers were served on the client. The court gave counsel an additional opportunity to cure that defect. On March 6, 2025, counsel filed an amended notice of motion and motion. The proof of service states that service of the moving papers were made on both opposing counsel and the client by electronic mail. However, the proof of service fails to identify the email address for the client at which service was purportedly made. CRC 2.251(c)(3)(B) provides that self-represented parties "are to be served by non-electronic methods unless they affirmatively consent to electronic service." While the client is not technically self-represented yet, the court finds that the notice concerns of electronic service on a client exists here. Further, the amended declaration of counsel on the motion [ROA # 46] states that the attorney has served the client by mail. Thus, the court does not know if the client was served by mail or electronically served. Because counsel has been given two opportunities to cure service defects but has not done so, the motion is DENIED without prejudice. Counsel to give notice.
11	Hultman vs. Wang	TENTATIVE RULING: For the reasons set forth below, Defendants Peter Huei Hsiang Wang and Esther Tsan Ya Wang's motion to strike Plaintiffs' First Amended Complaint is DENIED.

As a preliminary matter, the instant motion appears to be untimely. “Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof...” (Code Civ. Proc., § 435.) A responsive pleading must be filed and served within thirty days of service of the complaint. (See Code Civ. Proc. § 412.20(a)(3)).

Plaintiff Natsuko filed and served the First Amended Complaint on 12/9/24. Defendants filed this motion on 1/17/25, more than 30 days after the filing of the First Amended Complaint. Defendants have not shown that Plaintiffs granted Defendants an extension to respond to the First Amended Complaint. The Court notes that Plaintiffs did not raise this argument in their Opposition.

Applicable Law

Code of Civil Procedure section 436, subd. (b) provides that the court may, “in its discretion, and upon terms it deems proper: ... (b) [s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.”

This power includes the right to strike a pleading filed in an untimely manner. (See *Collins v. Bicknell* (1919) 41 Cal.App. 291, 292.)

Merits

Defendants contend that Plaintiff Natsuko’s First Amended Complaint is untimely, and improperly excludes Jon Hultman.

Plaintiff Natsuko Hultman moved for leave to file an amended complaint on 6/20/24. Defendants did not oppose Plaintiff’s motion for leave. (See Notice of Non-Opposition [ROA 143]).

This Court granted Plaintiff’s motion on 10/30/24, and noted the following in the court order: “No later than five (5) court days from the date of ruling, Moving Plaintiff shall file a ‘clean’ copy of the FAC that incorporates all proposed changes, except those changes deleting the claims of Plaintiff Jon Hultman, reflected in Exhibit A to the Weisskopf Declaration.”

Plaintiffs did not file the first amended complaint until 12/9/24, and when Plaintiff Natsuko did file the verified FAC, it was the version attached as the exhibit to Plaintiff Natsuko’s motion for leave, which excluded Plaintiff Jon Hultman. Plaintiffs then filed a notice of errata on 3/25/25 correcting this error, and submitting a “revised” verified

		FAC reinstating Jon, in compliance with this Court’s order. (ROA 176). Plaintiffs also included a declaration from Jon Hultman in support of Plaintiffs’ Opposition wherein he declares that he approves of the verified FAC. (Decl. of J. Hultman, ¶ 3). Counsel for Plaintiffs declares that the failure to timely file the first amended complaint was due to inadvertence. (Decl. of Weisskopf, ¶ 3). Once Defendants’ counsel informed him, he “quickly filed the amended complaint that [he] had attached to the motion”, but did not realize the note in the Court’s Order about Jon Hultman being reinstated. (Decl. of Weisskopf, ¶ 3). The court has discretion to accept an untimely pleading. (See <i>Harlan v. Dept. of Transportation</i> (2005) 132 Cal.App.4th 868, 873). As Plaintiffs argue, Defendants have not suffered any prejudice by way of the fact that Plaintiffs’ counsel did not realize that he had to separately file the proposed FAC (with Jon reinstated), until after the 5 days had lapsed. Accordingly, the motion is DENIED. Defendants shall give notice.
12	National Funding, Inc. vs. Circletree Media LLC	TENTATIVE RULING: <u>Motion for Summary Judgment</u> Plaintiff National Funding, Inc., moves for summary judgment against Defendants Circletree Media LLC dba Circletree Enterprises and Kyle Borgman. For the following reasons, the motion is DENIED without prejudice as to Defendant Circletree Media LLC, and GRANTED as to Defendant Kyle Borgman. Under Code of Civil Procedure section 437c(c), a summary judgment motion shall be granted if all the papers submitted show there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. A party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (See <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850 [re MSJ].) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at 851.) The parties must set forth admissible evidence. (Code Civ. Proc., § 437c(d).)

Only when the moving party meets that initial burden does the burden shift to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable issue as to that affirmative defense or cause of action. (*See Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App 4th 562, 575.)

First Cause of Action (Breach of Settlement Agreement)

The first cause of action alleges that on or about February 16, 2024, Defendants breached the parties’ settlement agreement. (Compl. ¶¶ 8-9, Ex. 1.) The Complaint alleges \$56,700.00, together with prejudgment interest thereon, is due and payable to Plaintiff. (Compl. ¶ 11.)

“[T]he elements of a cause of action for breach of contract are: (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

Here, Plaintiff does not meet its initial burden to show the existence of a contract between Plaintiff and Defendant Circletree Media LLC. The evidence submitted by Plaintiff shows that on or about December 27, 2023, Kyle Borgman and an entity identified as “Circletree Enterprises LLC” entered into a settlement agreement with Plaintiff (the “Settlement Agreement”). (*See Otero Decl., Ex. 1.*) The named entity defendant against whom Plaintiff seeks summary judgment is Defendant “Circletree Media LLC dba Circletree Enterprises.” (*See Compl.*) Plaintiff submits no evidence explaining the discrepancy in the “Circletree” names or showing the two entities to be one and the same. (*See generally* Pltf.’s Sep. St., Mot.)

Plaintiff does, however, meet its burden to show the existence of a settlement agreement between Plaintiff and Defendant Borgman. (*Otero Decl. ¶ 4, Ex. 1.*) Plaintiff also submits evidence showing that Plaintiff performed its obligations under the parties’ settlement agreement, Defendant Borgman breached by failing to pay the amounts due, and Plaintiff was damaged in the amount of \$56,700. (*Otero Decl. ¶¶ 6-8.*) Defendant Borgman chose not to oppose the motion and, thus, does not meet his shifted burden to show the existence of a triable issue of material fact.

Plaintiff is ordered to give notice.

13	National Funding, Inc. vs. New Vista Properties LLC	TENTATIVE RULING: <u>Motion for Summary Adjudication</u> Plaintiff National Funding, Inc., moves for summary judgment in Plaintiff’s favor and against Defendants New Vista Properties LLC and Michael Lerner on the Complaint. For the following reasons, the unopposed motion for summary judgment is GRANTED. Under Code of Civil Procedure section 437c(c), a summary judgment motion shall be granted if all the papers submitted show there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. A party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (See <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850 [re MSJ].) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) The parties must set forth admissible evidence. (Code Civ. Proc., § 437c(d).) <u>First Cause of Action (Breach of Agreement)</u> The first cause of action alleges that Defendant New Vista Properties breached its obligations under business loan agreement, agreement number FWC729610 (“Loan Agreement No. 1”) by failing to make the payment due on or about 11/29/2023 and now owes the entire balance of \$82,136.00. (Compl. ¶ 10.) “[T]he elements of a cause of action for breach of contract are: (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) Here, Plaintiff meets its burden to show the existence of Loan Agreement No. 1, Plaintiff’s performance, Defendant New Vista’s failure to pay the indebtedness owed under the agreement, and Plaintiff’s resulting damages in the amount of \$82,136.00. (Pltf.’s Sep. St. Nos. 1, 2, 5, 6, 8, 10, 11 [and evidence cited therein].)

Second Cause of Action (Breach of Guaranty)

The second cause of action alleges that Defendant Lerner breached the personal guaranty (“Guaranty No. 1”) executed in connection with Loan Agreement No. 1 by refusing to pay the sum of \$82,136.00 due under Loan Agreement No. 1. (Compl. ¶ 18.)

Here, Plaintiff meets its burden to show the existence of Guaranty No. 1, Plaintiff’s performance, Defendant Lerner’s failure to pay the indebtedness, and Plaintiff’s resulting damages in the amount of \$82,136.00. (Pltf.’s Sep. St. Nos. 1-6, 8, 10, 11 [and evidence cited therein].)

Third Cause of Action (Breach of Agreement)

The third cause of action alleges that Defendant New Vista Properties breached its obligations under business loan agreement, agreement number FWC729610-1 (“Loan Agreement No. 2”) by failing to make the payment due on or about 11/28/2023 and now owes the entire balance of \$115,464.46. (Compl. ¶ 23.)

Here, Plaintiff meets its burden to show the existence of Loan Agreement No. 2, Plaintiff’s performance, Defendant New Vista’s failure to pay the indebtedness owed under the agreement, and Plaintiff’s resulting damages in the amount of \$82,136.00. (Pltf.’s Sep. St. Nos. 12, 13, 16, 17, 19, 21, 22 [and evidence cited therein].)

Fourth Cause of Action (Breach of Guaranty)

The fourth cause of action alleges that Defendant Lerner breached the personal guaranty (“Guaranty No. 2”) executed in connection with Loan Agreement No. 2 by refusing to pay the sum of \$115,464.46 due under Loan Agreement No. 2. (Compl. ¶ 31.)

Here, Plaintiff meets its burden to show the existence of Guaranty No. 2, Plaintiff’s performance, Defendant Lerner’s failure to pay the indebtedness, and Plaintiff’s resulting damages in the amount of \$115,464.46. (Pltf.’s Sep. St. Nos. 11-17, 19, 21, 22 [and evidence cited therein].)

Defendants filed no opposition and, thus, do not meet their shifted burden to show a triable issue of material fact as to any cause of action.

Plaintiff to give notice.

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